

2012

M B A

1st Semester Examination

BUSINESS LEGISLATION

PAPER—MBA-105

Full Marks : 100

Time : 3 Hours

The figures in the right-hand margin indicate full marks.

Candidates are required to give their answers in their own words as far as practicable.

Illustrate the answers wherever necessary.

Write the answers to Questions of each Half in separate books.

(First Half)

(Marks : 50)

1. Answer any four questions :

5×4

- (a) "All are equal in the eye of law". Critically comment on the statement.

(Turn Over)

- (b) Write a note on contract of Champerty and Maintenance.
- (c) Make a distinction between specific goods and unascertained goods.
- (d) Discuss the agreements against public policy.
- (e) What do you mean by dishonour of cheque.
- (f) Narrate on Agency by Ratification — with examples.

2. Answer any two questions :

10x2

- (a) "An agreement made without valid consideration is void"—Explain with exceptions.
- (b) What are the "types of goods" in sale of Goods Act. Distinguish between Sale and Agreement to sell.
- (c) Discuss the objects behind the enactment of the Negotiable Instrument Act, 1881.

[Internal Assessment : 10 Marks]

{ Second Half }

(Marks : 50)

3. Answer any four questions :

5×4

- (a) What do you mean by the Property of the firm as per Indian Partnership Act ?
- (b) Write about term of patent as per Patents Act.
- (c) Write about the Cyber terrorism and its punishment as per I. T. Act.
- (d) Discuss the importance of Copyright.
- (e) When a person can oppose the registration of a Trade Mark ? If yes, how ?
- (f) Write about the restriction of employment of children, young persons and women as per the W. B. Shops and Establishment Act.

4. Answer any two questions :

10×2

- (a) What are the powers of a District Forum as per Consumer Protection Act 1986 ?

- (b) Write about the provision of retirement of a partner as per The Indian Partnership Act.
- (c) Write briefly on the following (any two) : 5×2
- (i) Trade Mark ;
 - (ii) Computer network ;
 - (iii) Hours of work in shops ;
 - (iv) Period of limitation to file a complaint as per Consumer Protection Act.
 - (v) Fair Trade practices.

[Internal Assessment : 10 Marks]
